

25LBCV03326 25LBCV03326

County: los-angeles

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1.

Background Facts

Plaintiff, James Brown filed this action against Defendant, American Honda Motor Co. for violations of Song-Beverly and related claims.

2.

Motion to Compel Arbitration

a. Legal Standard

The moving party on a motion to compel arbitration “bears the burden of proving the existence of a valid arbitration agreement by a preponderance of the evidence, while a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. The trial court sits as the trier of fact, weighing all the affidavits, declarations, and other documentary evidence, and any oral testimony the court may receive at its discretion, to reach a final determination.” (Ruiz v. Moss Bros. Auto Group, Inc. (2014) 232 Cal.App.4th 836, 842, internal citations omitted.)

b. Warranty Booklet

Here, Plaintiff signed a purchase agreement with Dealership. At the time of purchase, Plaintiff was provided a warranty booklet, which includes three provisions relevant to this ruling. They are (see Exhibit A to Plaintiff’s complaint, pages 3 and 6):

Please note that this new vehicle limited warranty contains an

arbitration provision that may affect your legal rights, and you agree that, pursuant to the Arbitration Provision contained in this warranty (beginning on page 6) of this booklet, that either you or American Honda Motor Co., Inc. may elect to resolve any dispute by neutral, binding arbitration and not by a court action. See the Arbitration Provision contained (beginning on page 6) of this new vehicle limited warranty for additional information concerning the agreement to arbitrate.

You and we agree that any dispute arising out of or relating to any aspect of the relationship between you and Honda will not be decided by a judge or jury but instead by a single arbitration administered by the American Arbitration Association (AAA) under its Consumer Arbitration Rules in effect on the date of delivery of your vehicle to you. This Agreement to Arbitrate includes all claims, whether based in contract, tort, statute, fraud, misrepresentation or any other legal theory; claims arising out of your warranty; claims arising before or after this Agreement, such as claims related to statements about our products; claims about the performance, design of our products, or manufacturing of our products; and claims that are currently the subject of purported class action litigation in which you are not a member of a certified class.

You may opt out of arbitration within 30 days after the date of delivery of your vehicle to you by sending a letter to: Honda's Office of the General Counsel, 1919 Torrance Blvd., Mail Stop CHI-5, Torrance, CA 90501, stating your name, Vehicle Identification Number, and intent to opt out of the arbitration provision. If you do not opt out, then this agreement to arbitrate is binding.

c. Acceptance of Contract

Plaintiff concedes he received the warranty booklet (indeed he is suing for breach of the warranties found therein), and concedes he did not opt out. He contends, however, that his lack of signature means there was no "agreement" and therefore he cannot be compelled to arbitrate his claims.

Plaintiff relies on *Norcia v. Samsung Telecommunications America, LLC* (9th Cir. 2017) 845 F.3d 1279 to support his position. In *Norcia*, the plaintiff filed a putative class action alleging that Samsung had made misrepresentations concerning the performance of its Galaxy phone. Samsung

moved to compel arbitration, relying on an arbitration clause contained in a warranty brochure included in the Galaxy box.

When the plaintiff purchased the phone, he signed a receipt that stated that he was agreeing to settlement of disputes by arbitration and other important terms in the Customer Agreement; there was nothing on the receipt indicating with whom he was making such an agreement (the store, the manufacturer, the service provider, etc.).

The actual agreement was found inside the box in a document called Product Safety & Warranty Information; notably, this document was not entitled Customer Agreement. Instead, the Customer Agreement apparently included a reference to the Product Safety & Warranty Information and incorporated its terms by reference.

Notably, Honda also relies on Norcia, contending it establishes, “A party who is bound by a contract is bound by all its terms, whether or not the party was aware of them.” Norcia does so hold, but only in the section discussing general contract law. Indeed, Norcia goes on, immediately thereafter, to indicate, “As a general rule, ‘silence or inaction does not constitute acceptance of an offer.’” The Norcia Court went on to cite examples of situations where silence DOES constitute acceptance, such as a situation where an employee signs a one-page clear document with an arbitration provision that is applicable unless the employee opts out, and then gives the employee a mechanism to opt out if he chooses to do so. Norcia went on to note that, unless the employee in the example above, the purchaser of the Samsung product did not sign anything at all, and merely received the warranty booklet.

The Court finds Norcia is directly on point. While it is a federal court case, it is an appellate level decision, and the parties do not cite on-point state appellate authority. Defendant cites various federal district court cases holding a provision in a warranty agreement is enforceable, but district court cases are not authorities. The Court finds placing an arbitration provision in a warranty booklet and then providing the booklet to the purchaser, without requiring the purchaser to sign the booklet or sign any agreement contained therein, does not establish consent to the agreement.

d. Commencement of Arbitration Proceedings

Defendant also contends it commenced arbitration proceedings, and

Plaintiff has participated in the proceedings, such that the agreement must be enforced. Defendant cites no authority in this section of its brief. It fails to show that its decision to commence arbitration after Plaintiff has commenced litigation somehow bars the ongoing litigation.

e.

Suing
on Warranty

Defendant makes much of the fact that Plaintiff is suing for breach of the warranty in which the arbitration agreement appears. Defendant cites no authority, however, for the position that this is relevant to the issue of whether Plaintiff consented to the arbitration provision in the warranty.

f.

Conclusion

The motion to compel arbitration is denied. The FSC and trial dates remain on calendar.

Honda is ordered to give notice.